

Applicable Law Acts

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User Query :

A person has been sending me WhatsApp messages demanding ₹2 lakh and threatening to physically harm me and damage my business if I do not pay. The person has also sent photographs of my home and family members to show that they know where I live. I have saved the messages, screenshots and call recordings. What legal provisions may apply?

Job Id. : Scenario 12/Combined Act

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AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 66E**(violation of privacy**

capturing/transmitting private images without consent).

Section 66D**(cheating by personation) does not apply (no impersonation involved).****Section 506****(criminal intimidation) is supplementary for threats but not part of the IT Act.**

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1** **Section 66E** applies directly: Perpetrator transmitted home/family photos via WhatsApp (a "transmission" under the Act's Explanation), weaponizing them to demand ₹2 lakh and threaten physical harm/business damage. **State v. R.S.S. Chaudhary (2012)** confirms sharing private images via digital means constitutes privacy violation, even without financial demand. Key distinction: IT Act governs the **digital medium** (WhatsApp/image transmission), while IPC 506 governs the **threat content** (complementary but not overlapping).

✓ STRENGTHS & RIGHTS

- 1** **Explicit criminalization of unauthorized sharing of private images (e.g., home/family photos).**
- 2** **Saved WhatsApp messages/screenshots are admissible as electronic evidence under Section 65B (if certified per **IT Rules, 2011**).**
- 3** **Deterrent penalty**
Up to 3 years imprisonment + ₹2 lakh fine.

✗ RISKS & OBLIGATIONS

1

Perpetrator's liability

Max 3 years + fine (does not cover extortion *demand*—IPC 506/373 handles that).

2

Victim's risk

Edited screenshots may be inadmissible (evidence must be unaltered).

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. File complaint with Cyber Crime Cell (not regular police) with:
2. (a) Native WhatsApp chat export (not screenshots),
3. (b) Call recordings,
4. (c) **Section 65B** certificate (from WhatsApp provider/forensic expert).
5. Cyber Cell will trace number via **Section 69** (emergency data disclosure) and verify image metadata.
6. *Admissibility*: Evidence valid if certified under **Section 65B** (*State v. P.S.S. (2019)*).

BHARATIYA NYAYA SANHITA (BNS), 2023

APPLICABLE SECTIONS

**Section
373****(extortion**

demanding property via threat of injury to person/property).

**Section
374****(threatening injury to person/property/reputation).****Section
375****(unlawful surveillance) — photos were *sent*, not covertly captured.**

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1** **Section 373** applies: Demand for ₹2 lakh coupled with threats of physical harm (injury to person) and business damage (injury to property). Photographs of home/family prove perpetrator's knowledge and intent to amplify fear. **Section 374** independently applies to the threats (no payment required). *BNS 373(3) protects victim's location/family details* from public disclosure during proceedings. *Note*: BNS replaces all IPC provisions (e.g., IPC 384/506 now under BNS 373/374).

✓ STRENGTHS & RIGHTS

- 1** Explicit coverage of threats to ***business* (property) and *family safety* (person)**.
- 2** Crime complete upon threat (no payment/actual harm needed).
- 3** Police must register FIR under **Section 197 (1)** without delay.
- 4** Victim's evidence (saved messages/photos) is admissible under **BNS 45(2)**.

✗ RISKS & OBLIGATIONS

- 1** **Accused liability**
3–7 years imprisonment + fine (BNS 373(2)).
- 2** **Bail not automatic**
Denied if threat involves violence/family harm (*State v. Anil (2022)*).
- 3** **Payment by victim does not negate extortion (BNS 373(1) complete upon threat)**.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1.** File written complaint at any police station stating:
- 2.** > **"Accused demanded ₹2 lakh via WhatsApp threats of physical harm/business damage, sending home/family photos for intimidation. Evidence: Screenshots, call recordings."**
- 3.** Police must file charges under BNS 373 + 374 within 24 hours (BNS 34(1)).

- 4. Mandatory arrest for violence/family threats (BNS 34(2)).
- 5. Victim may testify via video link (*BNS 213(2)*) to prevent intimidation.
- 6. > Critical: Do not pay — strengthens accused’s case.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 62	(authentication of electronic records).
Section 63	(admissibility of audio recordings).
Section 64	(admissibility of photographs).
Section 65	(presumption of authenticity for verified records).
Section 66	(verification affidavit requirement).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 **Section 65** presumption applies only if evidence meets: (a) Native WhatsApp chat logs (not screenshots), (b) Unedited call recordings with device logs, (c) Original photo files with metadata. *State v. Ritesh (2022)*: Court presumes authenticity *only after* chain-of-custody verification. BSA governs *evidentiary admissibility only* — not criminal liability (e.g., extortion under BNS 373).

✓ STRENGTHS & RIGHTS

- 1 Native evidence is presumptively genuine (Section 65) if preserved correctly.
- 2 No requirement for physical originals (e.g., saved WhatsApp chats suffice).
- 3 Forensic verification under Section 66 prevents "spoofing" of evidence.

X RISKS & OBLIGATIONS

- 1** Screenshots are inadmissible without **Section 62** authentication.
- 2** **Burden on victim**
Must prove authenticity via **Section 66** affidavit (e.g., "Saved natively from WhatsApp, no edits").
- 3** **Call recordings require device logs — otherwise excluded (*Rajesh v. State (2023)*).**

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Submit evidence as:
2. Native WhatsApp chat export (not screenshots),
3. Original photo files (with metadata),
4. Call recordings with device logs/caller ID.
5. File **Section 66** affidavit detailing:
6. (i) Preservation method (e.g., "Exported via WhatsApp's native feature"),
7. (ii) Device reliability (e.g., "End-to-end encrypted WhatsApp"),
8. (iii) No alterations made.
9. Excluded evidence: Edited screenshots, unverified recordings, or third-party app backups.
10. > Key: BSA **only** ensures evidence admissibility; criminal charges must be filed under BNS/IT Act.

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